

Tentative Rulings for August 11, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

25CECG00923 *Luna v. Fresno County Superintendent of Schools* – petitioner is ordered to appear, claimant is excused from appearing

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG04193 *Michael Williams v. Tracy Agrall* is continued to Thursday, August 13, 2026, at 3:30 p.m. in Department 503.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

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(35)

Tentative Ruling

Re: **Valera v. Alvarez Jr. et al.**
Superior Court Case No. 24CECG02674

Hearing Date: August 11, 2026 (Dept. 503)

Motion: By Defendants Hector Mario Alvarez, Jr. and Raul Alvarez to
Quash Service of Summons; and to Set Aside

Tentative Ruling:

To grant in part as to defendant Hector Mario Alvarez, Jr. (Code Civ. Proc., § 418.10, subd. (a).) To deny in part as to defendant Raul Alvarez.

To set aside as to defendant Hector Mario Alvarez, Jr. only: the August 21, 2024, entry of default; the August 21, 2025, entry of default judgment; and the November 12, 2025, abstract of judgment. To recall the May 15, 2026, writ of execution as to defendant Hector Mario Alvarez, Jr. only.

Explanation:

Defendants Hector Mario Alvarez, Jr. and Raul Alvarez (together "Defendants") seek relief under various provisions of the Code of Civil Procedure.

Quash Summons

Defendants seek to quash service of summons of the Complaint pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1).

Code of Civil Procedure section 418.10, subdivision (a)(1) provides that a defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. Generally, the court in which an action is pending has jurisdiction over a party from the time summons is served on him. (Code Civ. Proc., § 410.50, subd. (a).) Here, the proof of service of summons, filed July 12, 2024, shows substitute service of summons on July 3, 2024 as to each of Defendants.

Whether a proof of service is void does not depend on evidence outside the face of the record. (*Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 182.) If such a defect can be shown on the face of the proof of service, the burden falls to the plaintiff to demonstrate effective service. (*Dill v. Berquist Const. Co.* (1994) 24 Cal.App.4th 1426, 1441.) Without such a defect, the filing of a proof of service creates a rebuttable presumption that service was proper. (*Id.* at pp. 1441-1442.) There are no discernable defects on the face of the proofs of service. Accordingly, the proofs of service are presumptively valid.

As to defendant Raul Alvarez ("Raul")¹, Raul concedes that he resides at 1574 South Lind Avenue, Fresno, California, 93727. (Raul Decl., ¶ 2.) Raul resides that the location with his wife, Blanca. (*Ibid.*) The proof of service of summons as to Raul indicated substitute service on a residence, leaving papers with an individual who identified as Blanca. The court finds that service of summons was effected as to Raul. Relief under Code of Civil Procedure section 418.10 is denied as to Raul.

As to defendant Hector Mario Alvarez, Jr. ("Hector"), Hector submits that he has never resided at the address on the proof of service, at 1574 South Lind Avenue, Fresno, California, 93727. (Hector Decl., ¶ 4.) Hector submits that he has never used the location to receive mail or as a place of business. (*Id.*, ¶ 5.) Thus, the proof of service of summons as to Hector is sufficiently rebutted. Even were Hector acknowledges actual notice of the action in May 2025, service of process must conform to statutory requirements or all that follows is void. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808-809.) The motion to quash service of summons as to Hector is granted. The August 21, 2024, entry of default as to Hector is set aside. The August 21, 2025, entry of default judgment as to Hector is set aside. The November 12, 2025, abstract of judgment as to Hector is set aside. The May 15, 2026, writ of execution as to Hector is recalled.

Void Judgment

Raul seeks alternative relief under Code of Civil Procedure sections 473, subdivision (d) and 473.5, specifically under the court's inherent authority. After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. (*Bae v. T.D. Service Co. of Arizona* (2016) 245 Cal.App.4th 89, 97.) Such grounds include extrinsic fraud and extrinsic mistake. (*Ibid.*)

Extrinsic fraud occurs when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the action or proceeding or in some other way fraudulently prevented from presenting his defense. (*Bae v. T.D. Service Co. of Arizona, supra*, 245 Cal.App.4th at p. 97.)

Extrinsic mistake is found when, among other things, a mistake leads a court to do what it never intended. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) In other words, extrinsic mistake occurs when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. (*Bae v. T.D. Service Co. of Arizona, supra*, 245 Cal.App.4th at pp. 97-98.)

Neither appear applicable here. Raul stated that his wife told him a man came and left papers for Raul. (Raul Decl., ¶ 3.) Raul read enough of the papers to recognize that they related to a dispute with plaintiff Fernando Valera over a venture and buy-out. (*Ibid.*) Neither of these are extrinsic factors. Rather, Raul specifically states that he did not understand or realize the implication of the documents he received. (*Id.*, ¶¶ 3-7.) Ignorance generally is not an excuse. (*E.g., People v. Snyder* (1982) 32 Cal.3d 590, 592-593 ["It is an emphatic postulate of both civil and penal law that ignorance of a law is no excuse for a violation thereof."])

¹ First names are used for clarity. No disrespect is intended.

Raul focuses instead on evidence submitted in support of the application for default judgment. None of these demonstrate why Raul did not act on the documents he received in July 2024. Further, as noted above, the proof of service of summons is confirmed by Raul. The motion is denied as to Raul under Code of Civil Procedure section 473, subdivision (d).

Finally, Raul seeks relief under Code of Civil Procedure section 473.5. Code of Civil Procedure section 473.5 provides, in pertinent part that:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

Here, service of the summons resulted in actual notice. Raul otherwise does not present any specific arguments as to these grounds. Code of Civil Procedure section 473.5 does not apply. The motion is denied as to Raul under Code of Civil Procedure section 473.5.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Sedano v. City of Fresno et al.***
Superior Court Case No. 23CECG04664

Hearing Date: August 11, 2026 (Dept. 503)

Motion: Motion to Compel Further Responses

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Hernandez v. Poindexter Nut Company, Inc.***
Superior Court Case No. 24CECG01544

Hearing Date: August 11, 2026 (Dept. 503)

Motion: By Defendant Poindexter Nut Company, Inc.'s Counsel to be Relieved as Counsel

Tentative Ruling:

To deny without prejudice. (Cal. Rules of Ct., Rule 3.1362.)

Explanation:

Counsel for defendant Poindexter Nut Company, Inc. ("Counsel") has moved to be relieved as counsel of defendant Poindexter Nut Company, Inc.

"A notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel - Civil (form MC-051)." (Cal. Rules of Ct., Rule 3.1362(a).) "Notwithstanding any other rule of court, no memorandum is required to be filed or served with a motion to be relieved as counsel." (*Id.*, Rule 3.1362(b).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel - Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (*Id.*, Rule 3.1362(c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (*Id.*, Rule 3.1362(e).)

Forms MC-051, MC-052, and MC-053 must be used for a motion to be relieved as counsel. Counsel did not use those forms. Accordingly, the motion to be relieved as counsel is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Dakota Enterprises, Inc. v. Thomas Gromis***
Superior Court Case No. 24CECG05534

Hearing Date: August 11, 2026 (Dept. 503)

Motion: by Plaintiffs to Disqualify Defense Counsel

Tentative Ruling:

To take the motion off calendar.

Explanation:

The Action is Abated

On November 13, 2026, this court ordered the present action abated until Plaintiffs comply with Corporations Code section 2203, subdivision (c). This code section further prohibits the maintenance of “any action or proceeding” until the offending party has complied with the provisions outlined in the Code section. On July 16, 2026, Plaintiffs filed their Certificates of Qualification / Registration. However, Plaintiffs did not file “receipts showing the payment of the fees and penalty and all franchise taxes and any other taxes on business or property in this state that should have been paid for the period during which it transacted intrastate business” as required. (Corp. Code, § 2203, subd. (c).) The abatement has not been lifted, thus no proceeding may be maintained. (*Ibid.*)

The Motion Was Improperly Filed

The motion was filed by Mr. Mark Brolin “in pro per” on behalf of Plaintiffs Dakota Enterprises Inc. and Marina Point Capital, Inc. A corporation is not a natural person, and cannot appear in an action in propria persona, but instead must appear only through counsel. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 731.) This rule prevents the corporate representative from engaging in the unauthorized practice of law. (See, e.g., *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.) Here, Plaintiffs have counsel of record. It is unclear why Mr. Brolin filed this motion on his own.

Plaintiffs Provided Insufficient Notice

Further, Plaintiffs' notice of the instant motion was filed on July 27, 2026 with the hearing scheduled for August 11, 2026. The Proof of Service indicates the motion was “Dropped off at a Canadian mailbox for pickup and mailing to the United States location” on or about June 24, 2026. All moving and supporting papers must be served and filed at least 16 court days before the hearing. This timeframe is increased by 20 calendar days if the place of mailing is outside the US. (Code Civ. Proc., § 1005 subd. (b).) The insufficient amount of time between the motion's hearing date and when notice was served and filed results in defective notice, not waived by Defendants.

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Tentative Ruling

Re: ***Simpson v. Brar***
Superior Court Case No. 25CECG05496

Hearing Date: August 11, 2026 (Dept. 503)

Motion: By Defendant to Compel Arbitration

Tentative Ruling:

To deny.

Explanation:

Evidentiary Objections

Plaintiff's evidentiary objections to paragraphs 5, 6, and 9 of the Petition are sustained. Plaintiff's evidentiary objection to paragraph 7 of the Verification is overruled.

Defendant's evidentiary objection numbers 1-4 and 7 are overruled. Defendant's evidentiary objection numbers 5 and 6 are sustained.

Merits

In moving to compel arbitration, defendants must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.) (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.)

There is a strong policy in favor of arbitration. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Courts are to enforce arbitration agreements according to their terms. (*Ibid.*) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 540-543.)

Under the Federal Arbitration Act ("FAA"),

A written provision in ... a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.

(9 U.S.C. § 2.)

In ruling on a motion to compel arbitration, the court must first address whether there was an agreement to arbitrate and whether the agreement covers the dispute. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 960.) The moving party must first allege existence of an agreement to arbitrate. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) Where the moving party has alleged the existence of an arbitration agreement, the burden shifts to the opposing party to prove the falsity of the purported agreement. (*Id.* at p. 219.) The third step would be relevant where the opposing party has met its burden, then the burden shifts back to the moving party to “establish with admissible evidence a valid arbitration agreement between the parties.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.)

Here, defendants alleged an agreement to arbitrate sufficiently meeting their prima facie burden. However, plaintiff filed an opposition which included plaintiff's declaration that she did not recall signing the purported agreement and that she did not recognize the written signature on the agreement as her own. (Simpson Decl., ¶ 3.)

Here, defendants met their initial burden of presenting prima facie evidence of an agreement to arbitrate between plaintiffs and defendants. Notably, at the first step, the burden is low for the moving party. (*Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at p. 218.) A moving party can either provide a copy of the agreement or set forth the terms of the agreement, verbatim. (*Ibid.*) At this step, there is no requirement to follow the normal procedures to authenticate the document. (*Id.* at pp. 218-219.)

Thus, the burden shifted to plaintiff to challenge the authenticity of the agreement. (*Id.* at p. 219.) Here, plaintiff has sufficiently challenged that she signed the agreement. (Simpson Decl., ¶ 3.)

Where the opposing party has sufficiently challenged the authenticity of the agreement, then the burden shifts back to the moving party to produce admissible evidence establishing the existence of the agreement by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic*, *supra*, 72 Cal.App.5th at pp. 165-166.) It is here where the moving parties have failed to meet their burden.

Defendants have not established that plaintiff signed the agreement. The Declaration of Zulema Herrera fails to lay a foundation. Herrera fails to provide any context for when or where she purportedly went over the agreement with plaintiff and watched her sign it. (Herrera Decl., ¶ 2.)

Additionally, Herrera asserts, “Further, her signature is distinctive and is consistent with other documents she signed. (See example attached hereto as Exhibit 1.)” (Herrera Decl., ¶ 2.) Exhibit 1 includes a copy of plaintiff's social security card bearing her signature and an Associate Handbook Receipt and Acknowledgement also bearing her signature. (Herrera Decl., Exh. 1.) The Associate Handbook Receipt and Acknowledgment is dated May 31, 2019. (Herrera Decl., Exh. 1.) The arbitration agreement at issue is dated four days later on June 4, 2019. (Petition, Exh. A.)

Evidence Code section 1416 provides for lay witness testimony regarding handwriting where a court finds the witness "has personal knowledge of the handwriting of the supposed writer." Personal knowledge may be obtained by observing the writer write, having seen writing of the writer upon which the writer has acted or been charged, having received letters from the writer, or some other means of gaining personal knowledge of the handwriting. (Evid. Code, § 1416.) Evidence Code section 800 allows for lay testimony limited to opinions based on the witness' perceptions. Here, Herrera's declaration fails to address how she would have personal knowledge of plaintiff's handwriting. Instead she offers documents for comparison purposes. Determination of genuineness of handwriting by comparison may be made by an expert witness or a trier of fact. (Evid. Code, §§ 1417, 1418.) Herrera is neither.

Defendants have not established the existence of an agreement to arbitrate. The motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026.
(Judge's initials) (Date)